

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 869

Introduced by DeKay, 40.

Read first time January 08, 2026

Committee:

- 1 A BILL FOR AN ACT relating to property presumed abandoned; to amend
- 2 section 69-1311, Revised Statutes Supplement, 2025; to change
- 3 provisions relating to notice requirements; and to repeal the
- 4 original section.
- 5 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 69-1311, Revised Statutes Supplement, 2025, is
2 amended to read:

3 69-1311 (a) The State Treasurer shall annually cause notice to be
4 published once in each ~~an English language~~ legal newspaper of general
5 circulation in each county in this state ~~in which is located the last-~~
6 ~~known address of any person to be named in the notice. If no address is~~
7 ~~known, then the notice shall be published in a legal newspaper having~~
8 ~~statewide circulation.~~

9 (b) The published notice shall be entitled Notice to Owners of
10 Abandoned Property and shall contain:

11 (1)(i) (1) The names in alphabetical order and counties of last-
12 known addresses, if any, of persons listed in the report and entitled to
13 notice or (ii) a display ad that covers at least twenty-five percent of a
14 standard broadsheet and includes a description of how to search for
15 unclaimed property as provided in subsection (a) of this section.

16 (2) A statement that information concerning the amount or
17 description of the property and the name and address of the holder may be
18 obtained by any person possessing an interest in the property by
19 addressing an inquiry to the State Treasurer.

20 (c) The State Treasurer is not required to publish in such notice
21 any item of less than fifty dollars unless the State Treasurer ~~he or she~~
22 deems such publication to be in the public interest.

23 (d) Within one hundred twenty days from the receipt of the report
24 required by section 69-1310, the State Treasurer shall mail a notice to
25 each person having an address listed therein who appears to be entitled
26 to property of the value of fifty dollars or more presumed abandoned
27 under the Uniform Disposition of Unclaimed Property Act.

28 (e) The mailed notice shall contain:

29 (1) A statement that, according to a report filed with the State
30 Treasurer, property is being held to which the addressee appears
31 entitled.

1 (2) The name and address of the person holding the property and any
2 necessary information regarding changes of name and address of the
3 holder.

4 (3) A statement that, if satisfactory proof of claim is presented by
5 the owner to the State Treasurer, arrangements will be made to transfer
6 the property to the owner as provided by law.

7 (f) This section is not applicable to sums payable on traveler's
8 checks or money orders presumed abandoned under section 69-1302.

9 **Sec. 2.** Original section 69-1311, Revised Statutes Supplement,
10 2025, is repealed.